

Ref No.: BD-CW-SAMCO-ACE-LET-STR-040

5-January-2026

To: ACE Project Management | Moharram Bakhoun

Attention: Eng. Abdulaziz Mohamed (Project Manager)

Project Name: The Big Business District.

Contract/Package: Construction Works.

Subject: Confirmation of Continuation of Works and Request for Final Written Instructions Regarding Design Review (B01-04)

Dear Sir,

With reference to our letter No. **BD-CW-SAMCO-ACE-LET-STR-034** dated 17 December 2025, and to your subsequent response under letter No. **BD-ACEPM-SAMCO-LET-022**, we hereby confirm our continuation of the works in accordance with the approved designs. In order to ensure absolute contractual clarity, we wish to clarify and formally request the following:

1. Confirmation of Continuation of Works

We confirm our commitment to continue executing the works strictly in accordance with the designs and specifications officially issued and approved by your side. We will exert our utmost efforts to maintain the approved project schedule, to the extent possible within the framework of these approved designs.

2. Contractual Framework for Protection

To avoid any future ambiguity, we hereby set out the contractual position as follows:

- **Basis of Execution:** We are proceeding with the execution of the works based on your written instructions and in reliance on the approved designs (Contract Documents), in fulfillment of our obligations under Clause 8.1 (Commencement of Works) and Clause 4.1 (Contractor's General Obligations) of the Contract.
- **Allocation of Responsibility:** We reiterate that:
 - Our responsibility is limited to the proper and accurate execution of the approved designs, ensuring the required quality of workmanship and materials. Notwithstanding the foregoing, we have duly submitted and formally notified you of our comments and observations on your design.
 - The responsibility of the Employer/Engineer includes ensuring the **adequacy, completeness, and safety of the approved designs** issued by the Employer's appointed Designer.
- **Reservation of Rights:** We hereby expressly reserve all our rights to:
 - Claim additional costs and/or an extension of time, in accordance with Clauses 13 (Variations) and 20.1 (Contractor's Claims), should any future modification, enhancement, or redesign of the current approved designs result in additional costs or delays.



- Defend against any liability for defects or damages proven to arise **solely and directly** from deficiencies in the approved design itself, and not from the execution of the works.

3. Formal Request for Final Written Instructions

For the sake of complete clarity and to record this mutual understanding formally, we respectfully request the issuance of your final written instructions, worded as follows:

"The Contractor (SAMCO) is hereby instructed to proceed with the execution of all works strictly and without deviation in accordance with the approved structural drawings issued by the Employer's appointed Designer. The Employer/Engineer acknowledges that these drawings constitute the binding and final designs for execution at this stage, and that the Employer/Engineer bears full responsibility for their adequacy and safety. Any future request to modify these designs shall be considered a full 'Variation' and shall be valued and executed in accordance with Clause 13 of the Contract."

We trust this request serves to ensure work continuity while upholding contractual clarity for both parties. We await your written confirmation and the aforementioned instructions at your earliest convenience to guide our team conclusively.

Best regards,

Eng./ Ola Esam
Technical Director
SAMCO National Construction



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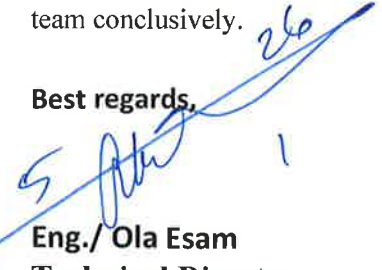
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